

STATE OF NEW YORK

8469--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 16, 2025

Introduced by M. of A. PAULIN, BRONSON, LUNSFORD -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to authorizing certain patients to use medical cannabis at certain health care facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public health law is amended by adding a new section 2833 to read as follows:

§ 2833. Medical cannabis access in health care facilities. 1. For the purposes of this section, the following terms shall have the following meanings:

(a) "Health care facility" shall mean a general hospital or nursing home as such terms are defined by section twenty-eight hundred one of this article.

(b) "Medical cannabis" shall have the same meaning as defined by subdivision thirty-three of section three of the cannabis law.

(c) "Patient" shall mean an individual who is terminally ill.

(d) "Terminally ill" shall have the same meaning as defined by subdivision fifty-one of section three of the cannabis law.

2. A health care facility shall permit patient use of medical cannabis while at such health care facility and shall:

(a) prohibit smoking or vaping as methods to use such medical cannabis;

(b) include the use of medical cannabis in such patient's medical records;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD11830-03-6

1 (c) reasonably regulate the way in which such patient stores and uses
2 medical cannabis, including requiring the medical cannabis be stored in
3 a locked container; and

4 (d) develop and disseminate written guidelines for the use of medical
5 cannabis within such health care facility pursuant to article three of
6 the cannabis law.

7 3. This section shall not be construed to reduce, expand, or otherwise
8 modify laws restricting cultivation, possession, distribution, or utili-
9 zation of cannabis which may be otherwise applicable.

10 4. This section shall not require a health care facility to provide a
11 patient with a recommendation to use medical cannabis in accordance with
12 section thirty-one of the cannabis law.

13 § 2. This act shall take effect on the ninetieth day after it shall
14 have become a law.